

24CHCV00932 24CHCV00932

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Case Number: 24CHCV00932 Hearing Date: August 21, 2026 Dept: F49

Dept. F49

Date: 8/21/26

Case Name: FC Marketplace, LLC v. Chapman Enterprises,
Inc. d/b/a Chapman Express; Alexandria Simmons Chapman; Eric Chapman, Jr.;
and Does 1-100

Case No. 24CHCV00932

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 21, 2026

CLAIM OF EXEMPTION

Los Angeles Superior

Court Case No. 24CHCV00932

Motion filed: 9/2/25

MOVING PARTY: Defendant Alexandria Simmons Chapman

RESPONDING PARTY: Plaintiff FC Marketplace, LLC

NOTICE: OK

RELIEF REQUESTED: An order from this Court granting Defendant Alexandria Simmons Chapman's claim of exemption of funds levied from her bank account.

TENTATIVE RULING: The claim is DENIED.

BACKGROUND

This action arises from the alleged failure of Defendants to make payments pursuant to a loan issued by Plaintiff FC Marketplace, LLC ("Plaintiff"). On March 20, 2024, Plaintiff filed the Complaint against Defendants Chapman Enterprises, Inc. d/b/a Chapman Express, Alexandria Simmons Chapman ("Alexandria"), Eric Chapman, Jr. (collectively, "Defendants"), and Does 1 through 100, alleging the following causes of action: (1) breach of written agreement, (2) breach of written guaranty, (3) foreclosure of commercial security agreement, (4) money lent, (5) account stated, and (6) indebtedness.

On May 22, 2024, the Court granted default judgment against Defendants in the amount of \$86,229.39.

On April 16, 2026, a writ of execution was issued against Defendants in the amount of \$102,661.67, representing the original judgment plus post-judgment costs and interest.

The levying officer served Plaintiff with a claim of exemption asserted by Alexandria.

On July 29, 2026, Plaintiff filed an Opposition to Alexandria's claim of exemption and served notice that a hearing on the claim would take place on August 21, 2026.

ANALYSIS

All property belonging to a judgment debtor is generally subject to enforcement of the judgment. (*Kilker v. Stillman* (2015) 233 Cal.App.4th 320, 329.) However, certain property of a judgment

debtor is exempt from levy. Pursuant to Code of Civil Procedure section 704.225, money in the judgment debtor's deposit account that is not otherwise exempt is exempt to the extent necessary for the support of the judgment debtor and the spouse and dependents of the judgment debtor.

"Money in the judgment debtor's deposit account in an amount equal to or less than the minimum basic standard of adequate care for a family of four for Region 1, established by Section 11452 of the Welfare and Institutions Code and as annually adjusted by the State Department of Social Services pursuant to Section 11453 of the Welfare and Institutions Code, is exempt without making a claim." (Code Civ. Proc., § 704.220, subd. (a).) The minimum exemption is currently set at \$2,325.00. (EJ-156, at p. 2.)

"The determination of what is 'necessary' for the support of the judgment debtor or his family has not been subject to a precise definition and differs with each debtor [Citations]." (J. J. MacIntyre Co. v. Duren (1981) 118 Cal.App.3d Supp. 16, 18.) Courts have accordingly found the following expenses to be necessary under the circumstances: "[p]roper medical attention," domestic services, "service of a nurse," a fur coat, dental services, "services of a nurse girl," and "legal services rendered an incompetent wife in restoring her to competency." (Sanker v. Humborg (1941) 48 Cal.App.2d 205, 207-208.)

At a hearing on a claim of exemption, the claimant has the burden of proof. (Code Civ. Proc., § 703.580, subd. (b).) "The claim of exemption is deemed controverted by the notice of opposition to the claim of exemption and both shall be received in evidence." (§ 703.580, subd. (c).) If no other evidence is offered and the Court finds that the claim of exemption and notice of opposition provide sufficient facts, the Court may make a determination on the claim. (Ibid.)

"If a claim of exemption asserts that money in a judgment debtor's deposit account is or was necessary for the support of the judgment debtor and the spouse and dependents of the judgment debtor as provided in Section 704.225, the court shall review the judgment debtor's financial statement and make findings thereon." (Code Civ. Proc., § 703.580, subd. (c).)

A. Claim of Exemption

Alexandria's

claim of exemption asserts that all funds levied from her Los Angeles Federal Credit Union account represent direct-deposited earnings needed for the necessary living expenses of her and her dependents, invoking Code of Civil Procedure section 704.225. (EJ-160, ¶¶ 6-7.) Alexandria does not state the amount levied, but Plaintiff indicates that around \$4,700 was captured and is on hold. (Opp'n, at p. 2.)

Alexandria

declares that she lives paycheck to paycheck with no savings, and that her monthly expenses exceed her income such that the levied funds are required to meet basic living needs. (EJ-160, ¶ 8.) Alexandria's financial statement indicates that her gross monthly income is \$12,000.00 and itemizes payroll deductions totaling \$5,887.84. (EJ-165, § 2.) Alexandria indicates that her net monthly household income, which includes \$4,300.00 per month earned by her spouse, is \$10,412.16. The purported monthly expenses for Alexandria and her family, in the amount of \$13,084.00, exceed her purported net income. (WG-007/EJ-165, § 4.)

Alexandria

further indicates that her assets include three bank accounts, a Los Angeles Federal Credit Union account containing \$500.00, a Bank of America account valued at \$15.00, and a Midwest Credit Union account holding \$300.00. (WG-007/EJ-165, § 3.)

Plaintiff

challenges both the accuracy of the financial statement and the reasonableness of Alexandria's expenses.

As to the

expenses, Plaintiff contends that many represent luxury items not necessary for Alexandria's support, including expenses for two luxury automobiles, monthly pool and yard care, and travel soccer expenses. (Opp'n, at pp. 3-4.) Plaintiff argues that Alexandria fails to explain why any of these expenses are necessary, and that the expenses and Alexandria's noted debts demonstrate that she has continued to enjoy an excessive lifestyle while disregarding her financial obligation to Plaintiff. (Id., at p. 4.)

Plaintiff's

argument is well taken. Alexandria lists \$640.93 in "soccer fees," of which

supporting attachments explain that \$200 is for travel and referee fees. (WG-007/EJ-165, § 4, Attach. 6.) However, Alexandria fails to account for the purpose of the remaining \$440.93 or explain why it is necessary for her or her family's support. Additionally, Alexandria lists six credit card accounts for which she must make monthly payments totaling \$1,741.00 on total debt of nearly \$100,000, but does not indicate how the charges incurred were necessary.

Plaintiff also

notes the discrepancy between Alexandria's representation that she has no assets and lives paycheck to paycheck with the fact that she somehow makes up the gap between her purported income and purported expenses, a difference of about \$2,600. (Opp'n, at p. 4.)

The Court notes

further discrepancies with Alexandria's showing. Specifically, it appears she overstates some of her expenses. The LADWP statement attached to the claim shows that she is billed in two-month cycles, with the most recent bill totaling \$1,833.07, roughly \$917 per month. However, she states that her monthly expenses for utilities and telephone are \$2,000, a difference of \$1,083. (WG-007/EJ-165, § 4c.) Alexandria fails to attach any telephone statements, but \$1,083 for telephone expenses in any case would be excessive for a family of four. Additionally, Alexandria itemizes insurance expenses of \$650 per month, but her health insurance premiums are deducted from her gross income, and the attached insurance premium summaries from USAA indicate automobile and homeowners insurance premiums amounting to \$591.50 monthly.

Additionally,

Plaintiff claims no equity in any cars or other vehicles, but her automobile insurance summary indicates that she is insured for three vehicles: an Acura, a Tesla, and a Nissan. Alexandria only notes monthly payments for the Acura and the Tesla, indicating that the Nissan is an owned vehicle.

Moreover, and

importantly, Alexandria does not attach any bank statements to her claim of exemption, providing no evidence beyond her own statement that she has no savings and the levied funds are necessary to meet basic needs.

Given the

apparent excess in Alexandria's spending and the discrepancies in her claim and supporting documents, the Court finds that Alexandria has failed to meet her

burden of establishing the need for the levied funds. The Court accordingly
DENIES the claim of exemption.

CONCLUSION

Defendant/Judgment Debtor Alexandria Simmons Chapman's
claim of exemption is DENIED.

Plaintiff to give notice.